

A. Introduction

1. **Title:** Demand and Energy Data
2. **Number:** MOD-031-3
3. **Purpose:** To provide authority for applicable entities to collect Demand, energy and related data to support reliability studies and assessments and to enumerate the responsibilities and obligations of requestors and respondents of that data.
4. **Applicability:**
 - 4.1. **Functional Entities:**
 - 4.1.1 Planning Coordinator
 - 4.1.2 Transmission Planner
 - 4.1.3 Balancing Authority
 - 4.1.4 Resource Planner
 - 4.1.5 Distribution Provider
5. **Effective Date:** See Implementation Plan.

B. Requirements and Measures

- R1.** Each Planning Coordinator or Balancing Authority that identifies a need for the collection of Total Internal Demand, Net Energy for Load, and Demand Side Management data shall develop and issue a data request to the applicable entities in its area. The data request shall include: *[Violation Risk Factor: Medium] [Time Horizon: Long-term Planning]*
- 1.1.** A list of Transmission Planners, Balancing Authorities, and Distribution Providers that are required to provide the data (“Applicable Entities”).
 - 1.2.** A timetable for providing the data. (A minimum of 30 calendar days must be allowed for responding to the request).
 - 1.3.** A request to provide any or all of the following actual data, as necessary:
 - 1.3.1.** Integrated hourly Demands in megawatts for the prior calendar year.
 - 1.3.2.** Monthly and annual integrated peak hour Demands in megawatts for the prior calendar year.
 - 1.3.2.1.** If the annual peak hour actual Demand varies due to weather-related conditions (e.g., temperature, humidity or wind speed), the Applicable Entity shall also provide the weather normalized annual peak hour actual Demand for the prior calendar year.
 - 1.3.3.** Monthly and annual Net Energy for Load in gigawatt hours for the prior calendar year.
 - 1.3.4.** Monthly and annual peak hour controllable and dispatchable Demand Side Management under the control or supervision of the System Operator in megawatts for the prior calendar year. Three values shall be reported for each hour: 1) the committed megawatts (the amount under control or supervision), 2) the dispatched megawatts (the amount, if any, activated for use by the System Operator), and 3) the realized megawatts (the amount of actual demand reduction).
 - 1.4.** A request to provide any or all of the following forecast data, as necessary:
 - 1.4.1.** Monthly peak hour forecast Total Internal Demands in megawatts for the next two calendar years.
 - 1.4.2.** Monthly forecast Net Energy for Load in gigawatthours for the next two calendar years.
 - 1.4.3.** Peak hour forecast Total Internal Demands (summer and winter) in megawatts for ten calendar years into the future.
 - 1.4.4.** Annual forecast Net Energy for Load in gigawatthours for ten calendar years into the future.

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Transmission Planner or Resource Planner with a demonstrated need for such data in order to conduct reliability assessments of the Bulk Electric System, provide or otherwise make available that data to the requesting entity. This requirement does not modify an entity's obligation pursuant to Requirement R2 to respond to data requests issued by its Planning Coordinator or Balancing Authority pursuant to Requirement R1. Unless otherwise agreed upon, the Applicable Entity: *[Violation Risk Factor: Medium] [Time Horizon: Long-term Planning]*

- shall not be required to alter the format in which it maintains or uses the data;
- shall provide the requested data within 45 calendar days of the written request, subject to part 4.1 of this requirement; unless providing the requested data would conflict with the Applicable Entity's confidentiality, regulatory, or security requirements

4.1. If the Applicable Entity does not provide data requested because (1) the requesting entity did not demonstrate a reliability need for the data; or (2) providing the data would conflict with the Applicable Entity's confidentiality, regulatory, or security requirements, the Applicable Entity shall, within 30 calendar days of the written request, provide a written response to the requesting entity specifying the data that is not being provided and on what basis.

M4. Each Applicable Entity identified in Requirement R4 shall have evidence such as dated e-mails or dated transmittal letters that it provided the data requested or provided a written response specifying the data that is not being provided and the basis for not providing the data in accordance with Requirement R4.

C. Compliance

1. Compliance Monitoring Process

1.1. Compliance Enforcement Authority

As defined in the NERC Rules of Procedure, “Compliance Enforcement Authority” means NERC or the Regional Entity in their respective roles of monitoring and enforcing compliance with the NERC Reliability Standards.

a. Evidence Retention

The following evidence retention periods identify the period of time an entity is required to retain specific evidence to demonstrate compliance. For instances where the evidence retention period specified below is shorter than the time since the last audit, the Compliance Enforcement Authority may ask an entity to provide other evidence to show that it was compliant for the full time period since the last audit.

The Applicable Entity shall keep data or evidence to show compliance with Requirements R1 through R4, and Measures M1 through M4, since the last audit, unless directed by its Compliance Enforcement Authority to retain specific evidence for a longer period of time as part of an investigation.

If an Applicable Entity is found non-compliant, it shall keep information related to the non-compliance until mitigation is complete and approved, or for the time specified above, whichever is longer.

The Compliance Enforcement Authority shall keep the last audit records and all requested and submitted subsequent audit records.

b. Compliance Monitoring and Assessment Processes:

Compliance Audit

Self-Certification

Spot Checking

Compliance Investigation

Self-Reporting

Complaint

c. Additional Compliance Information

None

Table of Compliance Elements

R #	Time Horizon	VRF	Violation Severity Levels			
			Lower VSL	Moderate VSL	High VSL	Severe VSL
R1	Long-term Planning	Medium	N/A	N/A	N/A	The Planning Coordinator or Balancing Authority developed and issued a data request but failed to include either the entity(s) necessary to provide the data or the timetable for providing the data.
R2	Long-term Planning	Medium	The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide all of the data requested in Requirement R1 part 1.5.1 through part 1.5.5 OR The Applicable Entity, as defined in the data request developed in Requirement R1, provided the data requested in Requirement R1, but did so after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2 but prior to 6	The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide one of the requested items in Requirement R1 part 1.3.1 through part 1.3.4 OR The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide one of the requested items in Requirement R1 part 1.4.1 through part 1.4.5 OR	The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide two of the requested items in Requirement R1 part 1.3.1 through part 1.3.4 OR The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide two of the requested items in Requirement R1 part 1.4.1 through part 1.4.5 OR	The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide three or more of the requested items in Requirement R1 part 1.3.1 through part 1.3.4 OR The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide three or more of the requested items in Requirement R1 part 1.4.1 through part 1.4.5

R #	Time Horizon	VRF	Violation Severity Levels			
			Lower VSL	Moderate VSL	High VSL	Severe VSL
			days after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2.	The Applicable Entity, as defined in the data request developed in Requirement R1, provided the data requested in Requirement R1, but did so 6 days after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2 but prior to 11 days after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2.	The Applicable Entity, as defined in the data request developed in Requirement R1, provided the data requested in Requirement R1, but did so 11 days after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2 but prior to 15 days after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2.	OR The Applicable Entity, as defined in the data request developed in Requirement R1, failed to provide the data requested in the timetable provided pursuant to Requirement R1 prior to 16 days after the date indicated in the timetable provided pursuant to Requirement R1 part 1.2.
R3	Long-term Planning	Medium	The Planning Coordinator or Balancing Authority, in response to a request by the Regional Entity, made available the data requested, but did so after 75 days from the date of request but prior to 81 days from the date of the request.	The Planning Coordinator or Balancing Authority, in response to a request by the Regional Entity, made available the data requested, but did so after 80 days from the date of request but prior to 86 days from the date of the request.	The Planning Coordinator or Balancing Authority, in response to a request by the Regional Entity, made available the data requested, but did so after 85 days from the date of request but prior to 91 days from the date of the request.	The Planning Coordinator or Balancing Authority, in response to a request by the Regional Entity, failed to make available the data requested prior to 91 days or more from the date of the request.
R4	Long-term Planning	Medium	The Applicable Entity provided or otherwise made available the data to the requesting entity	The Applicable Entity provided or otherwise made available the data to the requesting entity but	The Applicable Entity provided or otherwise made available the data to the requesting entity but	The Applicable Entity failed to provide or otherwise make available the data to

R #	Time Horizon	VRF	Violation Severity Levels			
			Lower VSL	Moderate VSL	High VSL	Severe VSL
			but did so after 45 days from the date of request but prior to 51 days from the date of the request OR The Applicable Entity that is not providing the data requested provided a written response specifying the data that is not being provided and on what basis but did so after 30 days of the written request but prior to 36 days of the written request.	did so after 50 days from the date of request but prior to 56 days from the date of the request OR The Applicable Entity that is not providing the data requested provided a written response specifying the data that is not being provided and on what basis but did so after 35 days of the written request but prior to 41 days of the written request.	did so after 55 days from the date of request but prior to 61 days from the date of the request OR The Applicable Entity that is not providing the data requested provided a written response specifying the data that is not being provided and on what basis but did so after 40 days of the written request but prior to 46 days of the written request.	the requesting entity within 60 days from the date of the request OR The Applicable Entity that is not providing the data requested failed to provide a written response specifying the data that is not being provided and on what basis within 45 days of the written request.

D. Regional Variances

None.

E. Interpretations

None.

F. Associated Documents

None.

Version History

Version	Date	Action	Change Tracking
1	May 6, 2014	Adopted by the NERC Board of Trustees	
1	February 19, 2015	FERC order approving MOD-031-1	
2	November 5, 2015	Adopted by the NERC Board of Trustees	
2	February 18, 2016	FERC order approving MOD-031-2. Docket No. RD16-1-000	
3	February 6, 2020	Adopted by the NERC Board of Trustees	Revisions under Project 2017-07
3	October 30, 2020	FERC order approving MOD-031-3 Docket No. RD20-4-000	

Guidelines and Technical Basis

Rationale

During development of this standard, text boxes were embedded within the standard to explain the rationale for various parts of the standard. Upon BOT approval, the text from the rationale text boxes was moved to this section.

Rationale for R1:

Rationale for R1: To ensure that when Planning Coordinators (PCs) or Balancing Authorities (Bas) request data (R1), they identify the entities that must provide the data (Applicable Entity in part 1.1), the data to be provided (parts 1.3 – 1.5) and the due dates (part 1.2) for the requested data.

For Requirement R1 part 1.3.2.1, if the Demand does not vary due to weather-related conditions (e.g., temperature, humidity or wind speed), or the weather assumed in the forecast was the same as the actual weather, the weather normalized actual Demand will be the same as the actual demand reported for Requirement R1 part 1.3.2. Otherwise the annual peak hour weather normalized actual Demand will be different from the actual demand reported for Requirement R1 part 1.3.2.

Balancing Authorities are included here to reflect a practice in the WECC Region where Bas are the entity that perform this requirement in lieu of the PC.

Rationale for R2:

This requirement will ensure that entities identified in Requirement R1, as responsible for providing data, provide the data in accordance with the details described in the data request developed in accordance with Requirement R1. In no event shall the Applicable Entity be required to provide data under this requirement that is outside the scope of parts 1.3 - 1.5 of Requirement R1.

Rationale for R3:

This requirement will ensure that the Planning Coordinator or when applicable, the Balancing Authority, provides the data requested by the Regional Entity.

Rationale for R4:

This requirement will ensure that the Applicable Entity will make the data requested by the Planning Coordinator or Balancing Authority in Requirement R1 available to other applicable entities (Planning Coordinator, Balancing Authority, Transmission Planner or Resource Planner) unless providing the data would conflict with the Applicable Entity's confidentiality, regulatory, or security requirements. The sharing of documentation of the supporting methods and assumptions used to develop forecasts as well as information-sharing activities will improve the efficiency of planning practices and support the identification of needed system reinforcements.

The obligation to share data under Requirement R4 does not supersede or otherwise modify any of the Applicable Entity's existing confidentiality obligations. For instance, if an entity is prohibited from providing any of the requested data pursuant to confidentiality provisions of an Open Access Transmission Tariff or a contractual arrangement, Requirement R4 does not require the Applicable Entity to provide the data to a requesting entity. Rather, under Part 4.1, the Applicable Entity must simply provide written notification to the requesting entity that it will not be providing the data and the basis for not providing the data. If the Applicable Entity is subject to confidentiality obligations that allow the Applicable Entity to share the data only if certain conditions are met, the Applicable Entity shall ensure that those conditions are met within the 45-day time period provided in Requirement R4, communicate with the requesting entity regarding an extension of the 45-day time period so as to meet all those conditions, or provide justification under Part 4.1 as to why those conditions cannot be met under the circumstances.